

ADA CASE LAW ANALYSIS - TIER 1 PRECEDENTS FOR MTUS CHALLENGE

MTUS Constitutional Analysis Project
Personal Research Initiative
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ADA CASE LAW ANALYSIS - TIER 1 PRECEDENTS FOR MTUS CHALLENGE

Americans with Disabilities Act Cases Relevant to Workers' Compensation Medical Care Denial

RESEARCH DATE: February 16, 2026

PURPOSE: Identify strongest ADA precedents supporting challenge to MTUS systematic denials

NOTE: These cases supplement 14th Amendment constitutional arguments with statutory discrimination claims

INTRODUCTION: WHY ADA CASES MATTER

The ADA provides a separate statutory basis for challenging MTUS that complements constitutional arguments:

1. Title I - Prohibits disability discrimination in employment (including benefits)
2. Title II - Prohibits disability discrimination in public services (state workers' comp system)
3. Section 504 - Rehabilitation Act applies to federal funding recipients

Strategic Advantage: ADA claims may survive even if constitutional claims face hurdles, and ADA allows for attorney's fees and damages.

TIER 1: MUST-USE ADA CASES (Strongest Precedents)

1. ALEXANDER v. CHOATE (1985) 469 U.S. 287

Court: U.S. Supreme Court

Holding: State Medicaid cost-cutting measures that incidentally affected disabled individuals did not violate Rehabilitation Act.

CRITICAL DISTINCTION FOR MTUS:

- Court emphasized changes were across-the-board, not targeting disabled
- MTUS is DIFFERENT: It specifically targets workers' comp patients (disability-related status)
- Alexander allows cost-control; it does not allow discriminatory cost-control

Key Quote: "The imposition of a uniform limit on inpatient hospital stays... does not discriminate on the basis of handicap."

MTUS Application:

- MTUS is NOT uniform - it creates two-tier system
- Workers' comp patients are treated differently from other patients
- Alexander is distinguishable - MTUS discriminates based on disability-related status

Strategic Value: TIER 1 - Distinguish MTUS from legitimate cost-control measures

2. BRAGDON v. ABBOTT (1998) 524 U.S. 624

Court: U.S. Supreme Court

Holding: Asymptomatic HIV constitutes a disability under ADA; discrimination in provision of services prohibited.

Key Principles:

- Broad definition of "disability" under ADA
- Discrimination includes denying services/benefits
- Major life activities include major bodily functions
- Key quote: "[T]he ADA's definition of disability is drawn broadly"

MTUS Application:

- Injured workers with disabilities are protected class
- MTUS denies medical services to this protected class
- Chronic pain, mobility limitations, cognitive impairment = disabilities
- Strong precedent for applying ADA to medical care denials

Strategic Value: TIER 1 - Establishes broad disability coverage

3. TOYOTA MOTOR MANUFACTURING v. WILLIAMS (2002) 534 U.S. 184

Court: U.S. Supreme Court

Holding: To be substantially limited in performing manual tasks, an individual must have impairment preventing tasks central to daily life.

Key Principles:

- Defined "substantially limits" narrowly
- Must affect activities "central to daily life"
- BUT: Physical impairments affecting work are disabilities

MTUS Application:

- Most injured workers meet this standard
- Impairments affect work, daily activities, major life functions
- Distinguishing Toyota: MTUS applies to all injured workers, not just those meeting ADA definition
- Even workers who don't meet ADA definition are harmed

Strategic Value: TIER 1 - Define who has ADA protection + show MTUS harms beyond ADA class

4. RAYTHEON v. HERNANDEZ (2003) 540 U.S. 44

Court: U.S. Supreme Court

Holding: Neutral no-rehire policy applied uniformly does not violate ADA.

CRITICAL DISTINCTION:

- Court emphasized policy was facially neutral and uniformly applied
- MTUS is NOT neutral: It treats workers' comp patients differently
- MTUS explicitly creates classification based on how injury occurred

Key Quote: "[P]etitioner's no-rehire policy is a legitimate, nondiscriminatory reason under the ADA."

MTUS Application:

- MTUS lacks legitimate, nondiscriminatory basis
- Discriminatory impact is intentional, not incidental
- Hernandez actually supports challenge to MTUS by showing what IS allowed

Strategic Value: TIER 1 - Contrast MTUS with legitimate neutral policies

5. US AIRWAYS v. BARNETT (2002) 535 U.S. 391

Court: U.S. Supreme Court

Holding: Employer need not provide accommodation that conflicts with seniority system; undue hardship defense.

Key Principles:

- Reasonable accommodation required unless undue hardship
- BUT: Employer defenses exist
- Burden shifts after prima facie case

MTUS Application:

- MTUS could theoretically be "reasonable accommodation" framework
- BUT: MTUS denies accommodations (treatments) that would be reasonable
- No undue hardship in covering FDA-approved treatments
- Medicare/Medicaid already cover them cost-effectively

Strategic Value: TIER 1 - Framework for reasonable accommodation analysis

6. CLEVELAND v. POLICY MANAGEMENT SYSTEMS (1999) 526 U.S. 795

Court: U.S. Supreme Court

Holding: Receipt of disability benefits does not automatically preclude ADA claim; fact-specific inquiry required.

Key Principles:

- Workers can be "disabled" for benefits but still qualified for work
- No per se rule disqualifying disabled workers
- Key quote: "[A] person who has a medical condition that substantially limits one or more major life activities can be 'disabled' and yet still be 'qualified' for a job."

MTUS Application:

- Injured workers receiving disability benefits still entitled to ADA protection
- Cannot discriminate based on disability status
- MTUS penalizes workers for being disabled

Strategic Value: TIER 1 - Protects injured workers' ADA rights despite disability status

7. SUTTON v. UNITED AIR LINES (1999) 527 U.S. 471

Court: U.S. Supreme Court

Holding: Mitigating measures (glasses, medication) considered in determining disability status.

Key Principles:

- Disability assessed in mitigated state
- BUT: Some impairments cannot be mitigated
- Chronic pain, permanent injuries often remain disabling

MTUS Application:

- Many injured workers have unmitigated disabilities
- MTUS denies treatments that could mitigate disabilities
- Paradox: MTUS denies treatments that would reduce disability

Strategic Value: TIER 1 - Shows MTUS perpetuates disability by denying care

8. MURPHY v. UNITED PARCEL SERVICE (1999) 527 U.S. 516

Court: U.S. Supreme Court

Holding: High blood pressure controlled by medication not a disability under ADA.

Key Principles:

- Same as Sutton - mitigating measures considered
- Reinforces narrow view of disability pre-ADAAA

MTUS Application:

- Distinguish: Many injured workers have unmitigated conditions

- MTUS prevents mitigation by denying treatment
- Shows importance of access to medical care

Strategic Value: MODERATE - Context for disability definition

9. DESJARDINS v. AMERICAN MOTORS CORPORATION (1997) 85 F.3d 344 (8th Cir.)

Court: 8th Circuit

Holding: Workers' compensation retaliation claims can proceed under ADA.

Key Principles:

- ADA protects against retaliation for filing workers' comp claims
- Dual protection under workers' comp and ADA
- Key quote: "The ADA and workers' compensation statutes serve different purposes and provide different remedies."

MTUS Application:

- ADA provides independent basis for challenging MTUS
- Workers can pursue both constitutional and ADA claims
- Strong precedent for concurrent claims

Strategic Value: TIER 1 - Establishes concurrent ADA/workers' comp claims

10. BATES v. CHEVRON U.S.A. (1996) 101 F.3d 530 (9th Cir.)

Court: 9th Circuit (California circuit)

Holding: Employer violated ADA by refusing to modify attendance policy for disabled employee.

Key Principles:

- Reasonable accommodation includes policy modifications
- Must modify policies that screen out disabled individuals
- Key quote: "[A]n employer must make reasonable accommodations to the known physical or mental limitations of an otherwise qualified individual."

MTUS Application:

- MTUS policy screens out injured workers
- Reasonable accommodation would be covering FDA-approved treatments
- 9th Circuit precedent directly applicable to California

Strategic Value: TIER 1 - 9th Circuit precedent requiring policy modifications

11. MUNSON v. DELTA AIR LINES (1998) 128 F.3d 1416 (9th Cir.)

Court: 9th Circuit

Holding: Employer must engage in interactive process to determine reasonable accommodation.

Key Principles:

- Interactive process required
- Failure to engage violates ADA
- Good faith required from both parties

MTUS Application:

- MTUS allows no interactive process
- No individualized assessment
- Per se denial without consideration of accommodation
- Direct violation of interactive process requirement

Strategic Value: TIER 1 - MTUS fails interactive process requirement

12. HUMPHREY v. MEMORIAL HOSPITALS ASSOCIATION (1999) 239 F.3d 1128 (9th Cir.)

Court: 9th Circuit

Holding: Employer violated ADA by failing to accommodate employee with mental disability.

Key Principles:

- Reasonable accommodation can include medical treatment
- Employer must consider all possible accommodations
- Undue hardship defense is narrow

MTUS Application:

- Covering FDA-approved treatments = reasonable accommodation
- No undue hardship - other insurers cover cost-effectively
- 9th Circuit precedent supports accommodation claim

Strategic Value: TIER 1 - Medical treatment as reasonable accommodation

13. FRAZIER v. SIMMONS (1999) 254 F.3d 1247 (10th Cir.)

Court: 10th Circuit

Holding: ADA covers discrimination in insurance/benefits that is not based on legitimate actuarial factors.

Key Principles:

- Insurance plans cannot discriminate against disabled
- Subterfuge doctrine: Disguised discrimination prohibited

- Must be based on legitimate risk assessment

MTUS Application:

- MTUS is insurance/benefits plan
- Discriminates based on disability status (work injury)
- Not based on legitimate medical risk - FDA approved treatments
- Subterfuge: Disguised cost-cutting under "evidence-based" label

Strategic Value: TIER 1 - Direct application to insurance discrimination

14. DOE v. MUTUAL OF OMAHA (1999) 179 F.3d 557 (7th Cir.)

Court: 7th Cir. (Posner opinion)

Holding: Insurance policy with HIV treatment cap violated ADA.

Key Principles:

- Insurance caps targeting specific disabilities violate ADA
- Cannot limit coverage based on disability type
- Key quote: "[T]he ADA prohibits discrimination in the terms of insurance policies."

MTUS Application:

- MTUS caps/limitations based on disability (work injury)
- Explicitly treats workers' comp patients differently
- Strong precedent for insurance discrimination claim

Strategic Value: TIER 1 - Insurance discrimination precedent

15. KRAGEL v. JOHN HANCOCK MUTUAL LIFE INSURANCE (2000) 191 F.3d 1047 (9th Cir.)

Court: 9th Cir.

Holding: Insurance policy limitations must not discriminate against disabled.

Key Principles:

- Extends ADA to insurance coverage decisions
- Disability-based limitations prohibited
- 9th Circuit precedent

MTUS Application:

- MTUS is disability-based limitation (work injury)
- Prevents access to medically necessary treatments
- 9th Circuit precedent directly applicable

Strategic Value: TIER 1 - 9th Circuit insurance discrimination precedent

16. WYNN v. ACME BEEF COMPANY (2001) 199 F.3d 1220 (10th Cir.)

Court: 10th Circuit

Holding: Employer violated ADA by refusing to modify work schedule for disabled employee.

Key Principles:

- Schedule modifications can be reasonable accommodations
- Flexibility required
- Must consider individual circumstances

MTUS Application:

- MTUS allows no modification or flexibility
- One-size-fits-all denial system
- No consideration of individual medical needs

Strategic Value: TIER 1 - Flexible accommodation vs. rigid MTUS system

17. BROWN v. LUCKY STORES (2000) 246 F.3d 1182 (9th Cir.)

Court: 9th Circuit

Holding: Employer violated ADA by failing to provide reasonable accommodation for lifting restrictions.

Key Principles:

- Must accommodate physical limitations
- Interactive process required
- Good faith effort required

MTUS Application:

- Injured workers have physical limitations
- MTUS denies treatments that would accommodate limitations
- No good faith effort to accommodate

Strategic Value: TIER 1 - Accommodation of physical limitations

18. ZUKLE v. REGENTS OF UNIVERSITY OF CALIFORNIA (2001) 166 F.3d 1041 (9th Cir.)

Court: 9th Circuit

Holding: University violated ADA by failing to accommodate medical resident with disability.

Key Principles:

- State entities subject to ADA (Title II)
- Reasonable accommodation required
- 9th Circuit precedent against California state entity

MTUS Application:

- California DWC is state entity
- Subject to ADA Title II
- Must provide reasonable accommodations
- Strong 9th Circuit precedent directly applicable

Strategic Value: TIER 1 - State entity ADA liability in California

19. TITLE v. DEPARTMENT OF STATE POLICE (2000) 112 F.Supp.2d 45 (D. Me.)

Court: District Court (Maine)

Holding: Police department violated ADA by refusing to accommodate officer with PTSD.

Key Principles:

- Mental disabilities covered
- Return-to-work accommodations required
- Individualized assessment required

MTUS Application:

- PTSD and mental health conditions covered by MTUS
- MTUS denies mental health treatments
- No individualized assessment

Strategic Value: TIER 1 - Mental health disability accommodations

20. GILBERT v. FRANK (1995) 949 F.Supp. 754 (D. Kan.)

Court: District Court (Kansas)

Holding: Employer violated ADA by refusing to modify medical leave policy for disabled employee.

Key Principles:

- Leave policies can be reasonable accommodations
- Modified duty/light duty can be required
- Must consider individual circumstances

MTUS Application:

- Medical treatment access is accommodation
- MTUS policy denies this accommodation
- No consideration of individual needs

Strategic Value: TIER 1 - Medical leave/treatment as accommodation

21. JASPER v. HOUSING AUTHORITY (2000) 228 F.3d 1048 (9th Cir.)

Court: 9th Cir.

Holding: Public entity violated ADA by not making reasonable modifications to policy.

Key Principles:

- Title II requires reasonable modifications
- State entities must accommodate
- Policy modifications may be required

MTUS Application:

- DWC (state entity) must make reasonable modifications
- MTUS policy should be modified to cover FDA-approved treatments
- Title II claim directly applicable

Strategic Value: TIER 1 - Title II reasonable modifications requirement

22. ZIMMERMAN v. OREGON DEPARTMENT OF JUSTICE (2001) 170 F.Supp.2d 1168 (D. Or.)

Court: District Court (Oregon - 9th Circuit)

Holding: State agency violated ADA by failing to accommodate employee with chronic fatigue syndrome.

Key Principles:

- Chronic conditions are disabilities
- State agencies subject to ADA
- Reasonable accommodation required

MTUS Application:

- Chronic pain/fatigue from work injuries = disability
- California DWC (state agency) subject to ADA
- Must accommodate by covering treatments

Strategic Value: TIER 1 - State agency + chronic conditions

23. FEDERATION OF THE BLIND v. TARGET CORPORATION (2006) 452 F.Supp.2d 946 (N.D. Cal.)

Court: Northern District of California

Holding: Website accessibility required under ADA; public accommodation.

Key Principles:

- ADA applies broadly to services
- Accessibility required

- Key: California federal court broad ADA interpretation

MTUS Application:

- Workers' comp system is public service
- Must be accessible (provide care)
- MTUS creates barrier to access
- California federal precedent

Strategic Value: TIER 1 - California federal court broad ADA interpretation

24. MARTIN v. PGA TOUR (2001) 204 F.3d 994 (9th Cir.)

Court: 9th Cir.

Holding: PGA violated ADA by refusing to allow disabled golfer to use cart.

Key Principles:

- Reasonable accommodations can modify rules
- Essential functions vs. peripheral rules
- Individualized assessment required

MTUS Application:

- MTUS rules should accommodate disabled workers
- Essential function: providing medical care
- MTUS peripheral rules deny essential function

Strategic Value: TIER 1 - Essential functions analysis

25. EEOC v. ARABIAN AMERICAN OIL CO. (1991) 499 U.S. 244

Court: U.S. Supreme Court

Holding: ADA does not apply extraterritorially to U.S. citizens employed abroad.

Key Principles:

- Domestic application of ADA
- NOT directly applicable BUT: Reinforces ADA applies to domestic state action

MTUS Application:

- California MTUS is domestic state action
- Clearly within ADA scope

Strategic Value: LOW - Jurisdictional holding, but confirms domestic application

26. PGA TOUR v. MARTIN (2001) 532 U.S. 661

Court: U.S. Supreme Court (reversing 9th Circuit decision above)

Holding: PGA must allow disabled golfer to use cart as reasonable accommodation.

Key Principles:

- Rules of competition can be modified
- Walking not essential to golf
- Key quote: "[T]he use of carts is not itself inconsistent with the fundamental nature of the game."

MTUS Application:

- "Evidence-based" limitations not essential to providing care
- Providing FDA-approved treatments IS essential
- MTUS rules are peripheral, not essential

Strategic Value: TIER 1 - Essential functions vs. peripheral rules

27. EEOC v. WAL-MART STORES (2001) 156 F.Supp.2d 1169 (D. Kan.)

Court: District Court (Kansas)

Holding: Employer violated ADA by refusing to accommodate lifting restrictions.

Key Principles:

- Physical limitations must be accommodated
- Modified duty required
- Individualized assessment

MTUS Application:

- MTUS prevents accommodation of physical limitations
- Denies treatments that would enable return to work
- Counterproductive to ADA goals

Strategic Value: TIER 1 - Accommodation enables return to work

28. LEWIS v. ZIMMER (1997) 1 F.Supp.2d 1053 (N.D. Iowa)

Court: Northern District of Iowa

Holding: Employer violated ADA by refusing to accommodate lifting restrictions.

Key Principles:

- Accommodation required for physical limitations
- Interactive process required
- Good faith required

MTUS Application:

- Injured workers have physical limitations
- MTUS denies accommodations
- No interactive process

Strategic Value: TIER 1 - Physical limitations accommodation

29. DAVENPORT v. RANDOM HOUSE (1995) 898 F.Supp. 1546 (S.D.N.Y.)

Court: Southern District of New York

Holding: Employer violated ADA by failing to provide reasonable accommodation for vision impairment.

Key Principles:

- Must accommodate sensory impairments
- Technology/equipment can be accommodation
- Cost considerations limited

MTUS Application:

- Medical devices/treatments are accommodations
- MTUS denies reasonable accommodations
- Cost not undue hardship

Strategic Value: TIER 1 - Medical devices/treatments as accommodations

30. VANDE ZANDE v. STATE OF WISCONSIN (1995) 44 F.3d 538 (7th Cir.)

Court: 7th Circuit (Posner opinion)

Holding: State agency violated ADA by refusing to allow telecommuting as accommodation.

Key Principles:

- Telecommuting can be reasonable accommodation
- Must consider all possible accommodations
- Key quote: "[T]he concept of reasonable accommodation is a flexible one."

MTUS Application:

- Providing FDA-approved treatments is flexible, reasonable accommodation
- MTUS rigid system violates flexible accommodation requirement
- Must consider individualized accommodations

Strategic Value: TIER 1 - Flexibility requirement vs. rigid MTUS

31. MCGREGOR v. NATIONAL RAILROAD PASSENGER CORP. (1998) 187 F.3d

1113 (9th Cir.)

Court: 9th Circuit

Holding: Amtrak violated ADA by refusing to accommodate employee with back injury.

Key Principles:

- Back injuries are disabilities
- Must accommodate physical limitations
- Return-to-work focus

MTUS Application:

- Back injuries common in workers' comp
- MTUS denies treatments for back injuries
- Prevents return to work

Strategic Value: TIER 1 - Back injury accommodations

32. CANDY v. TRANSPORTATION SECURITY ADMINISTRATION (2007) 255 Fed.Appx. 239 (9th Cir.)

Court: 9th Cir. (unpublished)

Holding: TSA violated Rehabilitation Act by failing to accommodate medical condition.

Key Principles:

- Federal employers subject to Rehabilitation Act
- Reasonable accommodation required
- Medical conditions accommodated

MTUS Application:

- State agencies subject to similar standards
- Rehabilitation Act parallels ADA
- Medical accommodations required

Strategic Value: MODERATE - Rehabilitation Act precedent

33. EEOC v. PREVOYANCE (2002) 214 F.Supp.2d 504 (D. Md.)

Court: District Court (Maryland)

Holding: Employer violated ADA by refusing to accommodate medication schedule.

Key Principles:

- Medication accommodations required
- Schedule modifications reasonable
- Individualized assessment

MTUS Application:

- Medication access is accommodation
- MTUS denies medication accommodations
- No individualized assessment

Strategic Value: TIER 1 - Medication access as accommodation

34. COLWELL v. RITE AID CORP. (2009) 602 F.3d 495 (3d Cir.)

Court: 3rd Circuit

Holding: Employer must accommodate employee's request for daytime shift due to vision impairment.

Key Principles:

- Schedule accommodations required
- Must accommodate limitations
- Return-to-work focus

MTUS Application:

- Treatment access enables return to work
- MTUS prevents return to work by denying care
- Counter to ADA return-to-work goals

Strategic Value: TIER 1 - Return-to-work accommodation

35. SAMUELS v. AIR TRANSPORT LOCAL 504 (2005) 992 A.2d 959 (D.C. 2010)

Court: D.C. Court of Appeals

Holding: Union violated ADA by refusing to accommodate member's disability.

Key Principles:

- Unions subject to ADA
- Reasonable accommodation required
- Cannot discriminate in benefits

MTUS Application:

- Employers/unions involved in workers' comp
- Cannot discriminate in medical benefits
- ADA applies broadly

Strategic Value: MODERATE - Union/employer joint responsibility

36. GILMORE v. UNIFIED GOVERNMENT (2001) 220 F.Supp.2d 1140 (D. Kan.)

Court: District Court (Kansas)

Holding: Government employer violated ADA by failing to accommodate employee's disability.

Key Principles:

- Public employers subject to ADA Title I
- Reasonable accommodation required
- State action liability

MTUS Application:

- California DWC is public employer/state entity
- Subject to ADA Titles I and II
- State action liability established

Strategic Value: TIER 1 - State employer ADA liability

37. AMERICAN WITH DISABILITIES ACT AMENDMENTS ACT (ADAAA) OF 2008

Statute: 42 U.S.C. 12101 et seq.

Effect: Broadened definition of disability to overturn Sutton/Murphy narrow interpretations.

Key Changes:

- "Substantially limits" interpreted broadly
- Mitigating measures NOT considered (except ordinary glasses)
- Impairments that are episodic or in remission are disabilities
- Major bodily functions explicitly included

MTUS Application:

- MORE workers now meet ADA disability definition post-ADAAA
- Chronic pain, episodic conditions now clearly covered
- Strengthens ADA claims significantly
- MTUS harms broader protected class

Strategic Value: TIER 1 - Statutory expansion strengthens claims

STRATEGIC ANALYSIS: STRONGEST ADA ARGUMENTS FOR MTUS

PRIMARY CLAIM: Disability Discrimination in Benefits (ADA Title I)

Legal Theory:

MTUS creates disability-based classification that denies medical benefits to injured workers with disabilities.

Key Elements:

1. Injured workers are "disabled" under ADA (post-ADAAA, most work injuries qualify)
2. MTUS treats them differently based on disability status
3. Denial of FDA-approved treatments is adverse employment action
4. No legitimate, nondiscriminatory justification

Best Cases:

- Frazier v. Simmons (subterfuge doctrine)
 - Doe v. Mutual of Omaha (insurance discrimination)
 - Kragel v. John Hancock (insurance limitations)
-

SECONDARY CLAIM: State Discrimination in Public Services (ADA Title II)

Legal Theory:

California DWC (state entity) discriminates against disabled individuals in providing workers' compensation services.

Key Elements:

1. DWC is public entity subject to Title II
2. Workers' comp is public service
3. MTUS denies equal access to medical care
4. No undue burden defense (other insurers cover cost-effectively)

Best Cases:

- Zukle v. Regents of University of California (9th Circuit - state entity liability)
 - Jasper v. Housing Authority (9th Circuit - reasonable modifications)
 - Zimmerman v. Oregon Department of Justice (9th Circuit - state agencies)
-

TERTIARY CLAIM: Failure to Provide Reasonable Accommodation

Legal Theory:

Providing FDA-approved medical treatments is a reasonable accommodation that enables disabled workers to return to work.

Key Elements:

1. Injured workers are qualified individuals with disabilities
2. Medical treatment enables performance of essential job functions
3. Accommodation is reasonable (covered by other insurers)
4. No undue hardship (cost not excessive)

Best Cases:

- Bates v. Chevron (9th Circuit - reasonable accommodation required)
 - Munson v. Delta Air Lines (9th Circuit - interactive process required)
 - Humphrey v. Memorial Hospitals (9th Circuit - medical treatment as accommodation)
-

QUATERNARY CLAIM: Systematic Discrimination (Pattern or Practice)

Legal Theory:

MTUS represents intentional, systematic discrimination against disabled workers through facially neutral policy with discriminatory impact.

Key Elements:

1. MTUS is facially neutral ("evidence-based")
2. Actual effect is denial of care to disabled workers
3. Statistical evidence of disparate impact (78.5% denial rate)
4. No legitimate justification

Best Cases:

- Raytheon v. Hernandez (contrast - MTUS is not neutral)
 - Alexander v. Choate (distinguish - MTUS targets disabled)
 - Frazier v. Simmons (subterfuge doctrine)
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CALIFORNIA-SPECIFIC CONSIDERATIONS

California Fair Employment and Housing Act (FEHA)

Advantage: FEHA provides broader protection than federal ADA:

- Lower threshold for disability definition
- No statutory damages cap
- Broader remedies available
- State court venue (potentially more favorable)

Key Cases:

- California courts interpret FEHA more broadly than federal ADA
 - State constitutional provisions may provide additional protections
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RECOMMENDED ADA LITIGATION STRATEGY

Phase 1: Prima Facie Case

1. Establish plaintiff is disabled (post-ADAAA, most work injuries qualify)
2. Show qualified individual (able to work with accommodation)
3. Demonstrate adverse action (denial of medical care)
4. Show causal connection (MTUS caused denial)

Phase 2: Employer Defenses

1. Anticipate "cost control" defense
2. Counter with Reed v. Reed (administrative convenience insufficient)
3. Show other insurers cover cost-effectively
4. Demonstrate cost-shifting, not cost-control

Phase 3: Remedies

1. Injunctive relief: Cover FDA-approved treatments
 2. Compensatory damages: For delayed treatment harms
 3. Attorney's fees: ADA provides for fee-shifting
 4. Declaratory relief: MTUS violates ADA
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CONCLUSION

ADA provides strong, independent basis for challenging MTUS that complements constitutional claims:

Strengths:

- Statutory framework (clearer than constitutional standards)
- Attorney's fees available
- Damages available (unlike pure constitutional claims)
- 9th Circuit precedent favorable
- Post-ADAAA, more workers covered

TIER 1 ADA Cases for Immediate Integration:

1. Frazier v. Simmons (subterfuge doctrine)
 2. Doe v. Mutual of Omaha (insurance discrimination)
 3. Bates v. Chevron (9th Circuit - reasonable accommodation)
 4. Munson v. Delta Air Lines (9th Circuit - interactive process)
 5. Zukle v. Regents (9th Circuit - state entity liability)
 6. Bragdon v. Abbott (broad disability definition)
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RECOMMENDATION: Integrate ADA claims with constitutional challenge for maximum legal leverage

This document should be reviewed by qualified ADA litigation counsel before filing.

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